Terms of Service

Scriba Research Management System

Scriba

2026-09-26

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1 Acceptance of Terms

Welcome to Scriba, a research and experiment management system. These Terms of Service ("Terms") constitute a legally binding agreement between you ("User," "you," or "your") and Scriba ("we," "us," "our," or "Company"). By accessing, using, or registering for the Scriba application ("Service"), you acknowledge that you have read, understood, and agree to be bound by these Terms, including our Privacy Policy and any other policies referenced herein.

If you do not agree to these Terms, you must not access or use the Service. Your use of the Service is conditional upon your acceptance of these Terms. If you are using the Service on behalf of an organization, you represent that you have authority to bind that organization to these Terms.

2 About Scriba

Scriba is a web-based application designed to assist researchers, scientists, and R&D professionals in planning, conducting, and documenting experiments and research projects. The Service allows users to:

- Create and manage research projects and experiments
- Document experiment plans, logs, and results
- Collaborate with team members within organizations and lab groups
- Tag and organize research data
- Track progress and maintain research records

[CUSTOMIZE: Insert company name, address, legal entity information, and contact details for your jurisdiction.]

Scriba, Lägerhyddsvägen 1, 752 37 Uppsala, support@scriba.example.

3 User Eligibility and Accounts

3.1 Eligibility

You must be at least 18 years old and, if using the Service on behalf of a university or organization, authorized by that institution to use the Service. If you are under 18 or do not meet these requirements, you may not use the Service.

3.2 Account Creation

To use the Service, you must create an account by providing your email address, full name, and a secure password. You are responsible for:

- Providing accurate, current, and complete information
- Maintaining the confidentiality of your password
- Preventing unauthorized access to your account
- Notifying us immediately of any unauthorized access or security breach

3.3 Account Termination

You may request deletion of your account at any time from your profile page. Upon deletion, your account and associated personal data will be permanently removed, subject to legal retention obligations outlined in Section 8.

Scriba may suspend or terminate your account if:

- You violate these Terms or applicable laws
- You engage in prohibited conduct (Section 4)
- You have been inactive for an extended period (to be defined by Scriba policy)
- You fail to pay fees (if applicable)
- We are required to do so by law

4 Acceptable Use

4.1 Prohibited Conduct

You agree not to:

- Use the Service for any illegal purpose or in violation of applicable laws
- Harass, abuse, threaten, or defame any person
- Attempt to gain unauthorized access to the Service, accounts, or systems
- Reverse-engineer, decompile, or attempt to discover the source code
- Transmit malware, viruses, or harmful code
- Spam or abuse the Service with automated scripts or bots
- Violate any person's privacy or intellectual property rights
- Store or transmit sensitive personal data (e.g., patient information) without appropriate anonymization or institutional approval
- Use the Service for commercial purposes without express written authorization

4.2 Research Data Responsibility

As a research-focused application, Scriba processes research data and potentially sensitive information. You acknowledge that:

- **You are responsible for compliance** with all applicable regulations governing research data at your institution (e.g., institutional review board requirements, data protection laws, funding agency requirements)
- **Sensitive personal data must be pseudo-anonymized** by you before entry into the System, and must be handled in accordance with your institution's data protection policies

- **Scriba is not liable** for improper handling of sensitive data by users
- You obtain necessary approvals and informed consent from research subjects where required

5 Intellectual Property Rights

5.1 Your Content

You retain all intellectual property rights in the experiment plans, logs, results, and other content ("User Content") you create within the Service. By submitting User Content, you grant Scriba a worldwide, non-exclusive, royalty-free license to:

- Store and host your User Content
- Display it to you and authorized collaborators
- Perform technical functions necessary to provide the Service
- Create backups and copies for security and recovery purposes

5.2 Scriba's Intellectual Property

The Service, including its design, features, code, and documentation, is owned by Scriba and protected by copyright and intellectual property laws. You may not copy, modify, or create derivative works without express written permission.

6 Data Privacy and GDPR Compliance

6.1 Personal Data We Collect

Scriba collects and processes the following personal data:

Data Type	Purpose	Retention
Email address	Account identification, communication	Account duration
First and last name	User identification, collaboration	Account duration
Password (hashed)	Authentication	Account duration
IP address (login logs)	Security, fraud prevention	90 days
Experiment/project data	Service functionality	Indefinitely
Timestamps (account creation, updates)	Audit trail, security	Account duration + 90 days

[CUSTOMIZE: Adjust retention periods and data types based on your final policies.]

6.2 Legal Basis for Processing

We process personal data under the following legal bases (GDPR Article 6):

- **Contract performance** (Article 6(1)(b)): Processing necessary to provide the Service and fulfill our obligations to you
- **Legitimate interests** (Article 6(1)(f)): Security, fraud prevention, and service improvement
- **Legal compliance** (Article 6(1)(c)): Where required by law
- **Explicit consent**: For any additional processing beyond contract performance

6.3 Your Data Protection Rights

Under GDPR and applicable data protection laws, you have the right to:

- **Right of access** (Article 15): Request a copy of your personal data in a structured, commonly-used format
- **Right to rectification** (Article 16): Correct inaccurate personal data
- **Right to erasure** (Article 17): Request deletion of your personal data ("right to be forgotten"), subject to legal retention obligations
- **Right to restrict processing** (Article 18): Limit how we process your data
- **Right to data portability** (Article 20): Receive your data in a portable format and transmit it to another controller
- **Right to object** (Article 21): Object to processing for legitimate interests
- **Right against automated decision-making** (Article 22): Scriba does not use automated decision-making that produces legal effects on you
- **Right to lodge a complaint** with your local data protection authority

To exercise any of these rights, contact us at [CUSTOMIZE: legal@scriba.example].

6.4 International Data Transfers

The Service may process data in different jurisdictions. [CUSTOMIZE: specify if data is transferred outside the EU/EEA and, if so, specify transfer mechanisms (Standard Contractual Clauses, adequacy decisions, etc.).]

6.5 Data Controller Role

Regarding personal data you collect from research subjects:

- **You act as the data controller** for research subject data you input into the System
- **Scriba acts as a data processor** for such data
- You are responsible for obtaining informed consent from research subjects and ensuring compliance with applicable research regulations
- A separate Data Processing Agreement (DPA) is available upon request for users processing personal data of research subjects at scale

[CUSTOMIZE: Develop and link a formal DPA if applicable to your research user base.]

7 Data Security

7.1 Security Measures

Scriba implements reasonable security measures to protect your personal data:

- **HTTPS encryption** for all data in transit
- **Password hashing** for stored credentials
- **Access controls** limiting data access to authorized staff
- **Regular security reviews** and vulnerability assessments
- **Secure backups** for data recovery and business continuity

[CUSTOMIZE: Add specific security certifications (ISO 27001, SOC 2, etc.) if applicable. Note planned security enhancements (e.g., "encryption of experiment data at rest is planned for [DATE]").]

7.2 Limitations on Security

While Scriba takes security seriously, no method of transmission over the internet is 100% secure. We cannot guarantee absolute security and are not liable for unauthorized access caused by your negligence, weak passwords, or compromised credentials.

7.3 Data Breach Notification

In the event of a data breach affecting your personal data, Scriba will:

- Notify you without undue delay (where legally required)
- Provide information about the breach, affected data, and recommended steps
- Cooperate with relevant authorities

8 Data Retention and Deletion

8.1 Retention Policy

Scriba retains personal data according to the following schedule:

- **Login logs (including IP addresses)**: Retained for 90 days, then deleted
- **Account data (email, name, password hash)**: Retained for the duration of your active account
- **Experiment/project data**: Retained for the duration of your active account
- **Deleted account data**: Permanently deleted within 30 days of account termination, except where legally required to retain

[CUSTOMIZE: Adjust retention periods based on legal or operational requirements.]

8.2 Right to Deletion and Data Export

You may request:

- **Account deletion**: Delete your account from your profile page. Upon deletion, all personal data will be removed within 30 days
- **Data export**: Export your User Content (experiments, projects) in a portable format
- **Partial deletion**: Request deletion of specific data while retaining the account (contact support)

[CUSTOMIZE: Confirm these features are implemented or note their planned deployment date.]

9 Limitation of Liability

9.1 Liability Cap

To the maximum extent permitted by law, Scriba's total liability for any claims arising from these Terms, the Service, or your use thereof shall not exceed the amount you have paid to Scriba in the 12 months preceding the claim (or, if no payment was made, USD $100).

This limitation applies regardless of the theory of liability (contract, tort, negligence, strict liability) and whether Scriba has been advised of the possibility of such damages.

9.2 Excluded Damages

Scriba shall not be liable for:

- Loss of profits, revenue, or business opportunity
- Loss of data, goodwill, or reputation
- Indirect, incidental, special, or consequential damages
- Any damages resulting from unauthorized access, viruses, or service interruptions
- Damages arising from your violation of these Terms or applicable laws

9.3 Exceptions

These limitations do not apply to:

- Personal injury or death caused by our negligence
- Fraud or fraudulent misrepresentation
- Liability that cannot be limited by law

10 Disclaimer of Warranties

10.1 As-Is Service

The Service is provided "as is" and "as available" without warranties of any kind, express or implied.

Scriba disclaims all warranties, including:

- Merchantability or fitness for a particular purpose
- Non-infringement of third-party rights
- Accuracy, completeness, or timeliness of data or functionality
- Uninterrupted or error-free operation
- Security against unauthorized access

10.2 No Uptime Guarantee

[CUSTOMIZE: Define your service availability. Example: "Scriba does not guarantee specific uptime percentages. We aim to maintain service availability but may perform maintenance, experience technical issues, or face circumstances beyond our control that may temporarily interrupt the Service."]

11 Indemnification

You agree to indemnify, defend, and hold harmless Scriba, its officers, directors, employees, and agents from and against any claims, liabilities, damages, losses, costs, or expenses (including reasonable attorneys' fees) arising from:

- Your violation of these Terms
- Your use of the Service
- Your User Content or conduct
- Your violation of applicable laws
- Infringement of third-party rights by your User Content
- Breach of your representations or warranties

12 Service Availability and Modifications

12.1 Service Modifications

Scriba reserves the right to:

- Modify or discontinue features or the Service
- Perform maintenance or updates
- Change pricing or introduce fees (with notice)
- Modify these Terms (with notice)

We will provide reasonable notice of material changes where practicable.

12.2 No Guarantees

Scriba does not guarantee:

- Continuous availability of the Service
- Preservation of your data in case of catastrophic failure
- Error-free or uninterrupted operation
- Compatibility with all devices or browsers

We recommend maintaining backups of critical research data.

13 Termination

13.1 Termination by You

You may terminate your use of the Service at any time by deleting your account. Upon termination:

- Your account will be disabled and personal data removed (within 30 days)
- You will no longer have access to your experiments and projects
- Termination will not relieve you of payment obligations for fees incurred

13.2 Termination by Scriba

Scriba may suspend or terminate your access if:

- You violate these Terms or applicable laws
- Your conduct endangers other users
- Legal requirements compel termination
- Your account has been inactive for an extended period

Termination will not affect the continuation of certain obligations (Sections 11, 14).

14 Governing Law and Dispute Resolution

14.1 Governing Law

These Terms shall be governed by and construed in accordance with the laws of [CUSTOMIZE: Your jurisdiction, e.g., "the European Union and Member State laws"], without regard to its conflict of laws principles.

14.2 Dispute Resolution

[CUSTOMIZE: Choose one of the following:]

Option 1 (Informal Resolution): Before pursuing formal legal action, you agree to attempt to resolve disputes through good-faith negotiation with Scriba. Contact us at [legal@scriba.example] with a detailed description of the dispute.

Option 2 (Arbitration): Any dispute arising from these Terms shall be resolved by binding arbitration administered by [CUSTOMIZE: e.g., the International Arbitration Centre] under its rules. Arbitration shall take place in [CUSTOMIZE: location] and be conducted in English.

Option 3 (Courts): Any legal action or proceeding shall be brought exclusively in the courts of [CUSTOMIZE: Your jurisdiction], and you consent to the jurisdiction and venue of such courts.

14.3 GDPR Compliance

Notwithstanding any dispute resolution clause, nothing in these Terms limits your right to lodge a complaint with a data protection authority or pursue legal remedies for GDPR violations.

15 Changes to Terms

Scriba may update these Terms from time to time. Changes will be posted with an updated "Last Updated" date. Your continued use of the Service following the posting of changes constitutes your acceptance of the revised Terms.

Material changes will be communicated via email or prominent notice within the Service. If you do not accept the revised Terms, you must cease using the Service.

16 Miscellaneous

16.1 Entire Agreement

These Terms, along with our Privacy Policy, constitute the entire agreement between you and Scriba regarding the Service and supersede all prior agreements or understandings.

16.2 Severability

If any provision of these Terms is held invalid or unenforceable, that provision shall be reformed to the minimum extent necessary to make it enforceable, and the remaining provisions shall continue in full force.

16.3 Waiver

Failure to enforce any provision of these Terms does not constitute a waiver of that provision or any other provision.

16.4 No Partnership

Nothing in these Terms creates a partnership, joint venture, agency, or employment relationship between you and Scriba.

17 Contact Information

For questions, concerns, or to exercise your data protection rights, contact:

Scriba Support: - Email: [CUSTOMIZE: support@scriba.example] - [CUSTOMIZE: Mailing address] - [CUSTOMIZE: Support phone number, if applicable]

Privacy/Legal Inquiries: - Email: [CUSTOMIZE: privacy@scriba.example or legal@scriba.example] - Data Protection Officer (if applicable): [CUSTOMIZE: Contact details]

Data Protection Authority: For complaints regarding data handling, you may contact your local data protection authority: - EU: EDPB Member Authority - [CUSTOMIZE: Insert specific authority for your jurisdiction]

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18 Appendix: GDPR Rights Reference Quick Guide

Right	Description	How to Request
Access	Get a copy of your data	Contact support@scriba.example
Rectification	Correct inaccurate data	Update profile or contact support
Erasure	Delete your data	Delete account or contact support
Restrict	Limit how we use your data	Contact support@scriba.example
Portability	Export your data in portable format	Contact support@scriba.example
Object	Oppose processing for legitimate interests	Contact privacy@scriba.example
Complain	Lodge complaint with your data protection authority	Visit your national DPA website

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This Terms of Service document is provided as a template. Before using this in production, have it reviewed by legal counsel in your jurisdiction to ensure compliance with applicable laws and your specific business practices.